

Exclusive Right of Sale Listing Agreement

This Exclusive Right of Sale Listing Agreement ("Agreement") is between

Jesse Silva

("Seller")

and brokerage HIDDEN HAVEN REALTY

("Broker").

1. Authority to Sell Property: Seller gives Broker the EXCLUSIVE RIGHT TO SELL the real and personal property (collectively "Property") described below, at the price and terms described below, beginning May 15, 2026 and terminating at 11:59 p.m. on September 30, 2026 ("Termination Date"). Upon full execution of a contract for sale and purchase of the Property, all rights and obligations of this Agreement will automatically extend through the date of the actual closing of the sales contract. Seller and Broker acknowledge that this Agreement does not guarantee a sale. This Property will be offered to any person without regard to race, color, religion, sex, handicap, familial status, national origin, or any other factor protected by federal, state, or local law. Seller certifies and represents that she/he/it is legally entitled to convey the Property and all improvements.

2. Description of Property:

(a) **Street Address:** 5105 W NEPTUNE WAY, Tampa, FL 33609

Legal Description: BEACH PARK LOT 3 BLOCK 14

☐ See Attachment

(b) **Personal Property, including appliances:**

☐ See Attachment

(c) **Occupancy:**

Property ☐ is ☒ is not currently occupied by a tenant. If occupied, the lease term expires

3. Price and Terms: The property is offered for sale on the following terms or on other terms acceptable to Seller:

(a) **Price:** \$

(b) **Financing Terms:** ☒ Cash ☒ Conventional ☒ VA ☐ FHA ☐ Other (specify)

☐ **Seller Financing:** Seller will hold a purchase money mortgage in the amount of \$ with the following terms:

☐ **Assumption of Existing Mortgage:** Buyer may assume existing mortgage for \$ plus an assumption fee of \$. The mortgage is for a term of 360 years beginning in 2021, at an interest rate of 2.9% ☒ fixed ☐ variable (describe)

Lender approval of assumption ☐ is required ☐ is not required ☐ unknown. **Notice to Seller: (1)** You may remain liable for an assumed mortgage for a number of years after the Property is sold. Check with your lender to determine the extent of your liability. Seller will ensure that all mortgage payments and required escrow deposits are current at the time of closing and will convey the escrow deposit to the buyer at closing. (2) Extensive regulations affect Seller financed transactions. It is beyond the scope of a real estate licensee's authority to determine whether the terms of your Seller financing agreement comply with all applicable laws or whether you must be registered and/or licensed as a loan originator before offering Seller financing. You are advised to consult with a legal or mortgage professional to make this determination.

(c) **Seller Expenses:** Seller will pay mortgage discount, other closing costs, or concessions not to exceed \$, and any other expenses Seller agrees to pay in connection with a transaction.

4. Broker Obligations: Broker agrees to make diligent and continued efforts to sell the Property in accordance with this Agreement until a sales contract is pending on the Property. This includes, except when not in Seller's best interests, cooperating and communicating with other brokers and making the property available for showings.

5. Multiple Listing Service: Placing the Property in a multiple listing service (the "MLS") is beneficial to Seller because the Property will be exposed to a large number of potential buyers. As a MLS participant, Broker is obligated to enter the Property into the MLS within one (1) business day of marketing the Property to the public (see Paragraph 6(a)) or as necessary to comply with local MLS rule(s). This listing will be published accordingly in the MLS unless Seller directs Broker otherwise in writing. (See paragraph 6(b)(i)). Seller authorizes Broker to report to the MLS this listing information and price, terms, and financing information on any resulting sale for use by authorized Board / Association members and MLS participants and subscribers unless Seller directs Broker

Seller () and Broker/Authorized Associate (SMP) acknowledge receipt of a copy of this page, which is Page 1 of 6. The Parties acknowledge this form should not be used to share offers of compensation to buyer brokers or other buyer representatives via any field in the Multiple Listing Service.

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Form
Simplicity

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otherwise in writing. The **Seller** and **Broker** agree to adhere to each local MLS's policies and further agree to execute any applicable forms as necessary.

6. Broker Authority: Seller authorizes Broker to:

(a) Market the Property to the Public (unless limited in Paragraph 6(b)(i) below):

(i) Public marketing includes, but is not limited to, flyers, yard signs, digital marketing on public facing websites, brokerage website displays (i.e. IDX or VOW unless marketing options pursuant to local MLS rules apply), email blasts, multi-brokerage listing sharing networks and applications available to the general public.

(ii) Public marketing also includes marketing the Property to real estate agents outside Broker's office.

(iii) Place appropriate transaction signs on the Property, except if Paragraph 6(b)(i) is checked below.

(iv) Use **Seller's** name in connection with marketing or advertising the Property.

☐ Display the Property on the Internet except the street address.

(b) Not Publicly Market to the Public/Seller Opt-Out:

(i.) ☐ **Seller** does not authorize **Broker** to display the Property on the MLS.

(ii.) **Seller** understands and acknowledges that if **Seller** checks option 6(b)(i), a For Sale sign will not be placed upon the Property and

(iii.) **Seller** understands and acknowledges that if **Seller** checks option 6(b)(i), **Broker** will be limited to marketing the Property only to agents within **Broker's** office.

_____/_____
Initials of Seller

(c) Obtain information relating to the present mortgage(s) on the Property.

(d) Provide objective comparative market analysis information to potential buyers.

(e) (Check if applicable) ☒ Use a lock box system to show and access the Property. A lock box does not ensure the Property's security. **Seller** is advised to secure or remove valuables. **Seller** agrees that the lock box is for **Seller's** benefit and releases **Broker**, persons working through **Broker**, and **Broker's** local Realtor Board / Association from all liability and responsibility in connection with any damage or loss that occurs.

☒ Withhold verbal offers. ☒ Withhold all offers once **Seller** accepts a sales contract for the Property.

(f) Act as a single agent of **Seller** with consent to transition to transaction broker.

(g) Virtual Office Websites: Some real estate brokerages offer real estate brokerage services online. These websites are referred to as Virtual Office Websites ("VOWs"). An automated estimate of market value or reviews and comments about a property may be displayed in conjunction with a property on some VOWs. Anyone who registers on a VOW may gain access to such automated valuations or comments and reviews about any property displayed on a VOW. Unless limited below, a VOW may display automated valuations or comments and reviews about this Property.

☒ **Seller** does not authorize an automated estimate of the market value of the listing (or a hyperlink to such estimate) to be displayed in immediate conjunction with the listing of this Property.

☒ **Seller** does not authorize third parties to write comments or reviews about the listing of the Property (or display a hyperlink to such comments or reviews) in immediate conjunction with the listing of this Property.

7. Seller Obligations: In consideration of Broker's obligations, Seller agrees to:

(a) Cooperate with **Broker** in carrying out the purpose of this Agreement, including referring immediately to **Broker** all inquiries regarding the Property's transfer, whether by purchase or any other means of transfer.

(b) Recognize **Broker** may be subject to additional MLS obligations and potential penalties for failure to comply with them.

(c) Provide **Broker** with keys to the Property and make the Property available for **Broker** to show during reasonable times.

(d) Inform **Broker** before leasing, mortgaging, or otherwise encumbering the Property.

(e) Indemnify **Broker** and hold **Broker** harmless from losses, damages, costs, and expenses of any nature, including attorney's fees, and from liability to any person, that **Broker** incurs because of (1) **Seller's** negligence, representations, misrepresentations, actions, or inactions; (2) the use of a lock box; or (3) the existence of undisclosed material facts about the Property.

(f) Perform any act reasonably necessary to comply with FIRPTA (Section 1445 of the Internal Revenue Code).

(g) Make all legally required disclosures, including all facts that materially affect the Property's value and are not readily observable or known by the buyer. **Seller** certifies and represents that **Seller** knows of no such material facts (local government building code violations, unobservable defects, etc.) other than the following:

Seller will immediately inform **Broker** of any material facts that arise after signing this Agreement.

(h) Consult appropriate professionals for related legal, tax, property condition, environmental, foreign reporting requirements, and other specialized advice.

Seller (_____) (_____) and Broker/Authorized Associate (SMD) acknowledge receipt of a copy of this page, which is Page 2 of 6. The Parties acknowledge this form should not be used to share offers of compensation to buyer brokers or other buyer representatives via any field in the Multiple Listing Service.

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8. **Compensation:** Seller will compensate Broker as specified below if a buyer is procured who is ready, willing, and able to purchase the Property or any interest in the Property on the terms of this Agreement or on any other terms acceptable to Seller. Seller will pay Broker as follows:
- (a) 2.5% of the total purchase price plus \$_____ OR \$_____, no later than the date of closing specified in the sales contract. However, closing is not a prerequisite for Broker's fee being earned.
- (b) 2.5 (\$ or %) of the consideration paid for an option, at the time an option is created. If the option is exercised, Seller will pay Broker the Paragraph 8(a) fee, less the amount Broker received under this subparagraph.
- (c) N/A (\$ or %) of gross lease value as a leasing fee, on the date Seller enters into a lease or agreement to lease, whichever is earlier. This fee is not due if the Property is or becomes the subject of a contract granting an exclusive right to lease the Property.
- (d) Broker's fee is due in the following circumstances: (1) If any interest in the Property is transferred, whether by sale, lease, exchange, governmental action, bankruptcy, or any other means of transfer, regardless of whether the buyer is secured by Seller, Broker, or any other person. (2) If Seller refuses or fails to sign an offer at the price and terms stated in this Agreement, defaults on an executed sales contract, or agrees with a buyer to cancel an executed sales contract. (3) If, within 180 days after Termination Date ("Protection Period"), Seller transfers or contracts to transfer the Property or any interest in the Property to any prospects with whom Seller, Broker, or any real estate licensee communicated regarding the Property before Termination Date. However, no fee will be due Broker if the Property is relisted after Termination Date and sold through another broker.
- (e) **Retained Deposits:** As consideration for Broker's services, Broker is entitled to receive _____% of all deposits that Seller retains as liquidated damages for a buyer's default in a transaction, not to exceed the Paragraph 8(a) fee.
- (f) **Brokerage commissions are not set by law and are fully negotiable.**
9. **Notice to Seller Regarding Buyer Brokers:** The buyer's broker, even if compensated by Seller or Broker, will provide services for the buyer. Seller is advised and is aware that Seller may, but is not required to, compensate a buyer's broker upon closing. Seller may choose to enter into a separate written agreement to pay buyer's broker or may approve Broker to pay buyer's broker in accordance with paragraph 10. Seller also understands:
- (a) "Buyer's broker" may include this Broker if Broker also works with buyer on this transaction;
- (b) If this occurs during the duration of this listing, Broker will be entitled to the compensation in paragraph 8 for services performed for Seller, as well as the buyer's broker compensation in paragraph 10(a) for services performed for buyer; the Seller should therefore take this into consideration when negotiating compensation; and
- (c) Broker may receive separate compensation from buyer for services rendered to buyer by Broker.
10. **Compensation to Buyer Brokers: Brokerage commissions are not set by law and are fully negotiable.** Seller approves the following (check one option; if no option is checked then option (c) is deemed to be selected):
- (a) ☐ Seller authorizes Broker to offer compensation to buyer's broker in the amount of: _____% of the purchase price or \$_____. (This amount will be paid from Broker to buyer's broker from the compensation amount agreed to in paragraph 8.) This compensation will be set forth in a separate written agreement between Broker and buyer's broker.
- (b) ☒ Seller authorizes Broker to offer compensation to buyer's broker from Seller in the amount of: 2% of the purchase price or \$_____. This compensation will be set forth in a separate written agreement between Seller and buyer's broker.
- (c) ☐ No compensation will be offered to buyer's broker.

Seller (_____) (_____) and Broker/Authorized Associate (SMD) (_____) acknowledge receipt of a copy of this page, which is Page 3 of 6. The Parties acknowledge this form should not be used to share offers of compensation to buyer brokers or other buyer representatives via any field in the Multiple Listing Service.

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11. Brokerage Relationship:

SINGLE AGENT NOTICE

FLORIDA LAW REQUIRES THAT REAL ESTATE LICENSEES OPERATING AS SINGLE AGENTS DISCLOSE TO BUYERS AND SELLERS THEIR DUTIES.

As a single agent, HIDDEN HAVEN REALTY

and its associates owe to you the following duties:

1. Dealing honestly and fairly;
2. Loyalty;
3. Confidentiality;
4. Obedience;
5. Full Disclosure;
6. Accounting for all funds;
7. Skill, care, and diligence in the transaction;
8. Presenting all offers and counteroffers in a timely manner, unless a party has previously directed the licensee otherwise in writing; and
9. Disclosing all known facts that materially affect the value of residential real property and are not readily observable.

Sheila M Desautels

Signature

05/19/2026

Date

Signature

Date

CONSENT TO TRANSITION TO TRANSACTION BROKER

FLORIDA LAW ALLOWS REAL ESTATE LICENSEES WHO REPRESENT A BUYER OR SELLER AS A SINGLE AGENT TO CHANGE FROM A SINGLE AGENT RELATIONSHIP TO A TRANSACTION BROKERAGE RELATIONSHIP IN ORDER FOR THE LICENSEE TO ASSIST BOTH PARTIES IN A REAL ESTATE TRANSACTION BY PROVIDING A LIMITED FORM OF REPRESENTATION TO BOTH THE BUYER AND THE SELLER. THIS CHANGE IN RELATIONSHIP CANNOT OCCUR WITHOUT YOUR PRIOR WRITTEN CONSENT.

As a transaction broker, HIDDEN HAVEN REALTY

and its associates, provides to you a limited form of representation that includes the following duties:

1. Dealing honestly and fairly;
2. Accounting for all funds;
3. Using skill, care, and diligence in the transaction;
4. Disclosing all known facts that materially affect the value of residential real property and are not readily observable to the buyer;
5. Presenting all offers and counteroffers in a timely manner, unless a party has previously directed the licensee otherwise in writing;
6. Limited confidentiality, unless waived in writing by a party. This limited confidentiality will prevent disclosure that the seller will accept a price less than the asking or listed price, that the buyer will pay a price greater than the price submitted in a written offer, of the motivation of any party for selling or buying property, that a seller or buyer will agree to financing terms other than those offered, or of any other information requested by a party to remain confidential; and
7. Any additional duties that are entered into by this or by separate written agreement.

Limited representation means that a buyer or seller is not responsible for the acts of the licensee. Additionally, parties are giving up their rights to the undivided loyalty of the licensee. This aspect of limited representation allows a licensee to facilitate a real estate transaction by assisting both the buyer and the seller, but a licensee will not work to represent one party to the detriment of the other party when acting as a transaction broker to both parties.

I agree that my agent may assume the role and duties of a transaction broker.

Sheila M Desautels

Signature

05/19/2026

Date

Signature

Date

Seller () () and Broker/Authorized Associate SMD acknowledge receipt of a copy of this page, which is Page 4 of 6. The Parties acknowledge this form should not be used to share offers of compensation to buyer brokers or other buyer representatives via any field in the Multiple Listing Service.

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205 **12. Conditional Termination:** At **Seller's** request, **Broker** may agree to conditionally terminate this Agreement. If
206 **Broker** agrees to conditional termination, **Seller** must sign a withdrawal agreement, reimburse **Broker** for all direct
207 expenses incurred in marketing the Property, and pay a cancellation fee of \$_____ plus
208 applicable sales tax. **Broker** may void the conditional termination, and **Seller** will pay the fee stated in Paragraph
209 8(a) less the cancellation fee if **Seller** transfers or contracts to transfer the Property or any interest in the Property
210 during the time period from the date of conditional termination to Termination Date and Protection Period, if
211 applicable.

212 **13. Dispute Resolution:** This Agreement will be construed under Florida law. All controversies, claims, and other
213 matters in question between the parties arising out of or relating to this Agreement or the breach thereof will be
214 settled by first attempting mediation under the rules of the American Arbitration Association or other mediator
215 agreed upon by the parties. If litigation arises out of this Agreement, the prevailing party will be entitled to recover
216 reasonable attorney's fees and costs, unless the parties agree that disputes will be settled by arbitration as follows:
217 **Arbitration:** By initialing in the space provided, **Seller** (____) (____) and **Broker or Authorized Associate**
218 (SMP) agree that disputes not resolved by mediation will be settled by neutral binding arbitration in the county in
219 which the Property is located in accordance with the rules of the American Arbitration Association or other
220 arbitrator agreed upon by the parties. Each party to any arbitration (or litigation to enforce the arbitration provision
221 of this Agreement or an arbitration award) will pay its own fees, costs, and expenses, including attorney's fees, and
222 will equally split the arbitrator's fees and administrative fees of arbitration.

223 **14. Miscellaneous:** This Agreement is binding on **Seller's** and **Broker's** heirs, personal representatives,
224 administrators, successors, and assigns. **Broker** may assign this Agreement to another listing office. This
225 Agreement is the entire agreement between **Seller** and **Broker**. No prior or present agreements or representations
226 will be binding on **Seller** or **Broker** unless included in this Agreement. Electronic signatures are acceptable and
227 will be binding. Signatures, initials, and modifications communicated by facsimile will be considered as originals.
228 The term "buyer" as used in this Agreement includes buyers, tenants, exchangors, optionees, and other categories
229 of potential or actual transferees.

230 **15. Additional Terms:** _____
231 _____
232 _____
233 _____
234 _____
235 _____
236 _____
237 _____
238 _____
239 _____
240 _____
241 _____
242 _____
243 _____
244 _____

245

Seller (____) (____) and Broker/Authorized Associate (SMP) (____) acknowledge receipt of a copy of this page, which is Page 5 of 6.
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246 **Seller's Signature:** _____ **Date:** _____
247 **Home Telephone:** _____ **Work Telephone:** _____ **Facsimile:** _____
248 **Address:** _____ 5105 W Neptune Way
249 **Email Address:** _____ silva8404@yahoo.com
250 **Seller's Signature:** _____ **Date:** _____
251 **Home Telephone:** _____ **Work Telephone:** _____ **Facsimile:** _____
252 **Address:** _____
253 **Email Address:** _____
254 **Broker or Authorized Sales Associate:** Sheila M Desautels **Date:** 05/19/2026
255 **Brokerage Firm Name:** _____ HIDDEN HAVEN REALTY **Telephone:** _____ (813) 865-0700
256 **Address:** _____ 2232 N Highland, Tampa, FL 33602

257 Copy returned to **Seller** on 05/19/2026 by ☒ email ☐ facsimile ☐ mail ☐ personal delivery.

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Seller's Property Disclosure – Residential



Notice to Licensee and seller: Only the **Seller** should fill out this form.

Notice to Seller: Florida law¹ requires a **Seller** of a home to disclose to the **Buyer** all known facts that materially affect the value of the property being sold and that are not readily observable or known by the **Buyer**. This disclosure form is designed to help you comply with the law. However, this disclosure form may not address every significant issue that is unique to the Property. You should think about what you would want to know if you were buying the Property today; and if you need more space for additional information, comments, or explanations, check the Paragraph 12 checkbox and attach an addendum.

Notice to Buyer: The following representations are made by **Seller** and **not** by any real estate licensee. This disclosure is not a guaranty or warranty of any kind. It is not a substitute for any inspections, warranties, or professional advice you may wish to obtain. It is not a substitute for your own personal judgment and common sense. The following information is based only upon **Seller's** actual knowledge of the Property's condition. **Sellers** can disclose only what they actually know. **Seller** may not know about all material or significant items. You should have an independent, professional home inspection to verify the condition of the Property and determine the cost of repairs, if any. This disclosure is not a contract and is not intended to be a part of any contract for sale and purchase.

Seller makes the following disclosure regarding the property described as: _____
5105 W NEPTUNE WAY, Tampa, FL 33609 (the "Property")

The Property is ☐ owner occupied ☐ tenant occupied ☐ unoccupied (If unoccupied, how long has it been since **Seller** occupied the Property? _____)

	Yes	No	Don't Know
1. Structures; Systems; Appliances			
(a) Are the structures including roofs; ceilings; walls; doors; windows; foundation; and pool, hot tub, and spa, if any, structurally sound and free of leaks?	☐	☐	☐
(b) Is seawall, if any, and dockage, if any, structurally sound?	☐	☐	☐
(c) Are existing major appliances and heating, cooling, mechanical, electrical, security, and sprinkler systems, in working condition, i.e., operating in the manner in which the item was designed to operate?	☐	☐	☐
(d) Does the Property have aluminum wiring other than the primary service line?	☐	☐	☐
(e) Are any of the appliances leased? If yes, which ones: _____	☐	☐	☐
(f) If any answer to questions 1(a) - 1(c) is no, please explain: _____			

2. Termites; Other Wood-Destroying Organisms; Pests			
(a) Are termites; other wood-destroying organisms, including fungi; or pests present on the Property or has the Property had any structural damage by them?	☐	☐	☐
(b) Has the Property been treated for termites; other wood-destroying organisms, including fungi; or pests?	☐	☐	☐
(c) If any answer to questions 2(a) - 2(b) is yes, please explain: _____			

3. Water Intrusion; Drainage; Flooding			
(a) Has past or present water intrusion affected the Property?	☐	☐	☐
(b) Have past or present drainage or flooding problems affected the Property?	☐	☐	☐
(c) Is any of the Property located in a special flood hazard area?	☐	☐	☐
(d) Is any of the Property located seaward of the coastal construction control line?	☐	☐	☐
(e) Does your lender require flood insurance?	☐	☐	☐
(f) Do you have an elevation certificate? If yes, please attach a copy.	☐	☐	☐
(g) If any answer to questions 3(a) - 3(d) is yes, please explain: _____			

¹ Johnson v. Davis, 480 So.2d 625 (Fla. 1985).

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	Yes	No	Don't Know
4. Plumbing			
(a) What is your drinking water source? ☐ public ☐ private ☐ well ☐ other			
(b) Have you ever had a problem with the quality, supply, or flow of potable water?	☐	☐	☐
(c) Do you have a water treatment system? If yes, is it ☐ owned ☐ leased?	☐	☐	☐
(d) Do you have a ☐ sewer or ☐ septic system? If septic system, describe the location of each system: _____			
(e) Are any septic tanks, drain fields, or wells that are not currently being used located on the Property?	☐	☐	☐
(f) Are there or have there been any defects to the water system, septic system, drain fields or wells?	☐	☐	☐
(g) Have there been any plumbing leaks since you have owned the Property?	☐	☐	☐
(h) Are any polybutylene pipes on the Property?	☐	☐	☐
(i) If any answer to questions 4(b), 4(c), and 4(e) - 4(h) is yes, please explain: _____			
5. Roof and Roof-Related Items			
(a) To your knowledge, is the roof structurally sound and free of leaks?	☐	☐	☐
(b) The age of the roof is _____ years OR date installed _____			
(c) Has the roof ever leaked during your ownership?	☐	☐	☐
(d) To your knowledge, has there been any repair, restoration, replacement (indicate full or partial) or other work undertaken on the roof? If yes, please explain: _____	☐	☐	☐
(e) Are you aware of any defects to the roof, fascia, soffits, flashings or any other component of the roof system? If yes, please explain: _____	☐	☐	☐
6. Pools; Hot Tubs; Spas			
Note: Florida law requires swimming pools, hot tubs, and spas that received a certificate of completion on or after October 1, 2000, to have at least one safety feature as specified by Section 515.27, Florida Statutes.			
(a) If the Property has a swimming pool, hot tub, or spa that received a certificate of completion on or after October 1, 2000, indicate the existing safety feature(s): ☐ enclosure that meets the pool barrier requirements ☐ approved safety pool cover ☐ required door and window exit alarms ☐ required door locks ☐ none			
(b) Has an in-ground pool on the Property been demolished and/or filled?	☐	☐	☐
7. Sinkholes			
Note: When an insurance claim for sinkhole damage has been made by the Seller and paid by the insurer, Section 627.7073(2)(c), Florida Statutes, requires the Seller to disclose to the Buyer that a claim was paid and whether or not the full amount paid was used to repair the sinkhole damage.			
(a) Does past or present settling, soil movement, or sinkhole(s) affect the Property or adjacent properties?	☐	☐	☐
(b) Has any insurance claim for sinkhole damage been made? If yes, was the claim paid? ☐ yes ☐ no If the claim was paid, were all the proceeds used to repair the damage? ☐ yes ☐ no	☐	☐	☐
(c) If any answer to questions 7(a) - 7(b) is yes, please explain: _____			

Seller (____) (____) and Buyer (____) (____) acknowledge receipt of a copy of this page, which is Page 2 of 4.

	<u>Yes</u>	<u>No</u>	<u>Don't Know</u>
8. Homeowners' Association Restrictions; Boundaries; Access Roads			
(a) Is membership in a homeowner's association mandatory or do any covenants, conditions or restrictions (CCRs) affect the Property? (CCRs include deed restrictions, restrictive covenants and declaration of covenants.)	☐	☐	☐
Notice to Buyer: If yes, you should read the association's official records and/or the CCRs before making an offer to purchase. These documents contain information on significant matters, such as recurring dues or fees; special assessments; capital contributions, penalties; and architectural, building, landscaping, leasing, parking, pet, resale, vehicle and other types of restrictions.			
(b) Are there any proposed changes to any of the restrictions?	☐	☐	☐
(c) Are any driveways, walls, fences, or other features shared with adjoining landowners?	☐	☐	☐
(d) Are there any encroachments on the Property or any encroachments by the Property's improvements on other lands?	☐	☐	☐
(e) Are there boundary line disputes or easements affecting the Property?	☐	☐	☐
(f) Are you aware of any existing, pending or proposed legal or administrative action affecting homeowner's association common areas (such as clubhouse, pools, tennis courts or other areas)?	☐	☐	☐
(g) Have any subsurface rights, as defined by Section 689.29(3)(b), Florida Statutes, been severed from the Property?	☐	☐	☐
If yes, is there a right of entry? ☐ yes ☐ no			
(h) Are access roads ☐ private ☐ public? If private, describe the terms and conditions of the maintenance agreement: _____			

(i) If any answer to questions 8(a) - 8(g) is yes, please explain: _____			

9. Environmental			
(a) Was the Property built before 1978?	☐	☐	☐
If yes, please see Lead-Based Paint Disclosure.			
(b) Does anything exist on the Property that may be considered an environmental hazard, including but not limited to, lead-based paint; asbestos; mold; urea formaldehyde; radon gas; methamphetamine contamination; defective drywall; fuel, propane, or chemical storage tanks (active or abandoned); or contaminated soil or water?	☐	☐	☐
(c) Has there been any damage, clean up, or repair to the Property due to any of the substances or materials listed in subsection (b) above?	☐	☐	☐
(d) Are any mangroves, archeological sites, or other environmentally sensitive areas located on the Property?	☐	☐	☐
(e) If any answer to questions 9(b) - 9(d) is yes, please explain: _____			

10. Governmental, Claims and Litigation			
(a) Are there any existing, pending or proposed legal or administrative claims affecting the Property?	☐	☐	☐
(b) Are you aware of any existing or proposed municipal or county special assessments affecting the Property?	☐	☐	☐
(c) Is the Property subject to any Qualifying Improvements assessment per Section 163.081, Florida Statutes?	☐	☐	☐
(d) Are you aware of the Property ever having been, or is it currently, subject to litigation or claim, including but not limited to, defective building products, construction defects and/or title problems?	☐	☐	☐
(e) Have you ever had any claims filed against your homeowner's Insurance Policy?	☐	☐	☐

Seller (____) (____) and **Buyer** (____) (____) acknowledge receipt of a copy of this page, which is Page 3 of 4.

